Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1453
Claimant:	Bryan Garcia
Adjuster:	Valerie Rodriguez

October 17, 2023 - Claim opened following report of a collision at an intersection. Insured vehicle was turning left when it struck a vehicle traveling straight through on the opposing approach. Claimant reports a wrsit fracture and has retained counsel. All further contact to go through the attorney's office. Photos of both vehicles requested from the insured.

October 18, 2023 - Spoke with insured by phone. Insured states the oncoming vehicle was approaching at speed and the left-turn signal was active. Insured has been asked to provide the dashcam footage and a written statement. Police report requested from the reporting agency.

October 27, 2023 - Received letter of representation from claimant's attorney. Claimant's medical records show a closed fracture of the wrist with surgical fixation performed. Treating physician notes indicate a expected recovery period of several months with physical therapy. Medical bills submitted are under review. Reserve revised to reflect injury severity.

October 30, 2023 - Reviewed police report. Responding officer noted the insured failed to yield to oncoming traffic during the left turn. Witness statement from a pedestrian at the corner supports the claimant's account that the claimant had the green light. Libaility appears likely to fall primarily on the insured. Discussed with supervisor.

October 31, 2023 - Demand package received from claimant's attorney, including itemized medical bills, wage loss documentation, and a nrarative of ongoing limitations. Demand is being evaluated against policy limits and comparable settlements. Requested an independent medical exam. Scheduled a call with defense counsel to discuss next steps and settlement authority.

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Recorded Statement

Claim number:	C-1453
Statement of:	Bryan Garcia
Taken by:	Valerie Rodriguez
Date:	October 24, 2023

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the collision you were involved in while turning left in Pasadena, Texas. Are you comfortable continuing?

A: Yes, that's fine.

Q: Please satte your full name and the address where you currently live.

A: I'd rather not give my full name on the recording, but I can confirm I live in Pasadena.

Q: That's acceptable. Can you describe what you were doing right before the collision?

A: I was driving through an intersection and wanted to turn left into a shopping center. The light had turned yellow, and I waited for oncoming traffic to clear before I started the turn.

Q: How fast were you movnig when you began the turn?

A: I was going slowly, maybe ten or fifteen miles an hour. I'd almost stopped at the middle of the intersection.

Q: What happened next?

A: A car coming from the other direction hit the front driver's side of my vehicle. I didn't see it coimng until right before impact. I braked, but there wasn't time.

Q: Did you notice whether the other driver had a signal on?

A: I don't think so. I didn't see a turn signal, but I wasn't paying attention to that at the time.

Q: Were you injured?

A: Yes. My left wrist hit the door frame and the steering wheel. I was taken to the hospital and they said it was fractured. I've been wearing a splint and I'm following up with an orthopedic doctor.

Q: Thank you. Is there anything else you would like to add?

A: Only that I'm still having trouble with my wrist and I'm worried about missing work.

Q: Thank you for your time. This concludes the statement.